

STATE OF NEW YORK

7475--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 28, 2025

Introduced by M. of A. WOERNER, BUTTENSCHON, KAY -- read once and referred to the Committee on Racing and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law, in relation to electronic bell jar games

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings and purpose. 1. The legislature here-
2 by finds that:
3 (a) bell jar games are a popular and profitable fundraising mechanism
4 for bona fide not-for-profit organizations across the state, generating
5 millions of dollars in net revenues for charitable purposes every year;
6 (b) authorized organizations that offer bell jars and other games of
7 chance must meet strict standards established by the New York state
8 general municipal law and the New York state gaming commission, includ-
9 ing receiving a license to conduct charitable gaming activities; and
10 (c) while other types of gaming in New York state have continued to
11 expand and improve, the operation of charitable gaming activities has
12 largely remained the same over the last several decades.
13 2. For the aforementioned reasons, the legislature hereby declares
14 that authorized organizations licensed by the New York state gaming
15 commission to conduct charitable gaming would greatly benefit from the
16 ability to operate electronic bell jar vending machines, which display
17 and dispense pre-printed bell jar tickets that have predetermined
18 winners and predetermined values for prizes, in order to help increase
19 charitable gaming profits across the state and attract more members to
20 join such organizations.
21 § 2. Subdivision 3-a of section 186 of the general municipal law, as
22 amended by chapter 531 of the laws of 2011, is amended to read as
23 follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 3-a. "Bell jars" shall mean and include those games in which a partic-
2 ipant shall draw a card from a jar, vending machine, including an elec-
3 tronic bell jar vending machine, or other suitable device or container
4 which contains numbers, colors or symbols that are covered and which,
5 when uncovered, may reveal that a prize shall be awarded on the basis of
6 a designated winning number, color or symbol or combination of numbers,
7 colors or symbols. Bell jars shall also include seal cards, coin boards,
8 event games, and merchandise boards. An electronic bell jar vending
9 machine shall track the sales of tickets and any other information as
10 required by the commission and report such sales and other information
11 to the commission, use electronic features to display and dispense pre-
12 printed bell jar tickets, and may include audio and video features to
13 display information about a ticket being dispensed, provided that such
14 features shall not affect the outcome of the game.

15 § 3. Subdivision 9 of section 188-a of the general municipal law, as
16 added by chapter 960 of the laws of 1976, is amended to read as follows:

17 9. (a) The [~~board~~] commission shall have the power to approve and
18 establish a standard set of games of chance equipment and shall by its
19 rules and regulations prescribe the manner in which such equipment is to
20 be reproduced and distributed to licensed authorized organizations. The
21 sale or distribution to a licensed authorized organization of any equip-
22 ment other than that contained in the standard set of games of chance
23 equipment shall constitute a violation of this section.

24 (b) After the effective date of this paragraph, no electronic bell jar
25 vending machine shall be sold, leased, distributed, installed, or oper-
26 ated by any manufacturer, distributor, or charitable organization until
27 such machine has been approved by the commission. No electronic bell
28 jar vending machine shall be approved by the commission unless the oper-
29 ation of the game demonstrates that there is a finite probability basis
30 of having a predetermined quantity of chances among which there is a
31 predetermined quantity of winners that pay a fixed and predetermined
32 value of prizes, regardless of the symbols that are used or how those
33 symbols are displayed on pre-printed bell jar tickets.

34 (c) The commission shall promulgate such rules and regulations as may
35 be necessary for the approval and implementation of electronic bell jar
36 vending machine gaming. The commission may revoke, suspend, or condition
37 approval of an electronic bell jar vending machine. Upon request for
38 authorization, the commission shall approve or deny such request within
39 thirty days. If the commission denies such request for approval, it
40 shall provide the reasons for such determination.

41 § 4. Subdivision 3 of section 189 of the general municipal law, as
42 amended by chapter 337 of the laws of 1998, is amended to read as
43 follows:

44 3. No authorized organization licensed under the provisions of this
45 article shall purchase, lease, or receive any supplies or equipment
46 specifically designed or adapted for use in the conduct of games of
47 chance from other than a supplier licensed by the [~~board~~] commission or
48 from another authorized organization. Lease terms and conditions shall
49 be subject to rules and regulations promulgated by the [~~board~~] commis-
50 sion. The provisions of this article shall not be construed to authorize
51 or permit an authorized organization to engage in the business of leas-
52 ing games of chance, supplies, or equipment. Furthermore, no organiza-
53 tion shall purchase bell jar tickets[~~r~~] or deals of bell jar tickets, or
54 purchase or lease any electronic bell jar vending machine, from any
55 other person or organization other than those specifically authorized

1 under sections one hundred ninety-five-n and one hundred ninety-five-o
2 of this article.

3 § 5. The opening paragraph of section 189-a of the general municipal
4 law, as amended by chapter 164 of the laws of 2003, is amended to read
5 as follows:

6 No person, firm, partnership, corporation or organization, shall sell
7 or distribute supplies or equipment specifically designed or adapted for
8 use in conduct of games of chance without having first obtained a
9 license therefor upon written application made, verified and filed with
10 the [board] commission in the form prescribed by the rules and regu-
11 lations of the [board] commission. As a part of its determination
12 concerning the applicant's suitability for licensing as a games of
13 chance supplier, the [board] commission shall require the applicant to
14 furnish to the [board] commission two sets of fingerprints. Such fing-
15 erprints shall be submitted to the division of criminal justice services
16 for a state criminal history record check, as defined in subdivision one
17 of section three thousand thirty-five of the education law, and may be
18 submitted to the federal bureau of investigation for a national criminal
19 history record check. Manufacturers of bell jar tickets shall be consid-
20 ered suppliers of such equipment. In each such application for a license
21 under this section shall be stated the name and address of the appli-
22 cant; the names and addresses of its officers, directors, shareholders
23 or partners; the amount of gross receipts realized on the sale and
24 rental of games of chance supplies and equipment to duly licensed
25 authorized organizations during the last preceding calendar or fiscal
26 year, and such other information as shall be prescribed by such rules
27 and regulations. The fee for such license shall be a sum equal to twen-
28 ty-five dollars plus an amount equal to two per centum of the gross
29 sales and rentals, if any, of games of chance equipment and supplies to
30 authorized organizations or authorized games of chance lessors by the
31 applicant during the preceding calendar year, or fiscal year if the
32 applicant maintains [~~his~~] their accounts on a fiscal year basis;
33 provided, however, that for manufacturers of electronic bell jar vending
34 machines, the fee for such license shall be one thousand dollars. No
35 license granted pursuant to the provisions of this section shall be
36 effective for a period of more than one year.

37 § 6. Section 195-c of the general municipal law, as amended by chapter
38 252 of the laws of 1998, is amended to read as follows:

39 § 195-c. [~~1.~~] Persons operating games; equipment; expenses; compen-
40 sation. 1. No person shall operate any game of chance under any license
41 issued under this article except a bona fide member of the authorized
42 organization to which the license is issued, or a bona fide member of an
43 organization or association which is an auxiliary to the licensee or a
44 bona fide member of an organization or association of which such licen-
45 see is an auxiliary or a bona fide member of an organization or associ-
46 ation which is affiliated with the licensee by being, with it, auxiliary
47 to another organization or association. Nothing herein shall be
48 construed to limit the number of games of chance licensees for whom such
49 persons may operate games of chance nor to prevent non-members from
50 assisting the licensee in any activity other than managing or operating
51 games. No game of chance shall be conducted with any equipment except
52 such as shall be owned or leased by the authorized organization so
53 licensed or used without payment of any compensation therefor by the
54 licensee. However, in no event shall bell jar tickets be transferred
55 from one authorized organization to another, with or without payment of
56 any compensation thereof. The head or heads of the authorized organiza-

tion shall upon request certify, under oath, that the persons operating any game of chance are bona fide members of such authorized organization, auxiliary or affiliated organization. Upon request by an officer or the department any such person involved in such games of chance shall certify that ~~[he or she has]~~ they have no criminal record. No items of expense shall be incurred or paid in connection with the conducting of any game of chance pursuant to any license issued under this article except those that are reasonable and are necessarily expended for games of chance supplies and equipment, prizes, security personnel, stated rental if any, bookkeeping or accounting services according to a schedule of compensation prescribed by the board, janitorial services and utility supplies if any, and license fees, and the cost of bus transportation, if authorized by such clerk or department. No commission, salary, compensation, reward or recompense shall be paid or given to any person for the sale or assisting with the sale of raffle tickets.

2. For the purpose of the sale of tickets for the game of raffle, the term "operate" shall not include the sale of such tickets by persons of lineal or collateral consanguinity to members of an authorized organization licensed to conduct a raffle.

3. Each electronic bell jar vending machine that has been approved by the commission pursuant to paragraph (b) of subdivision nine of section one hundred eighty-eight-a of this article shall do the following:

(a) read a barcode or similar form of encryption or marking on the pre-printed bell jar ticket;

(b) reveal results;

(c) verify if a bell jar ticket is redeemable for a prize;

(d) electronically aggregate winning prizes for continued play;

(e) produce a voucher for prize redemption or proof of purchase;

(f) track the sales of tickets and any other information as required by the commission and report such sales and other information to the commission;

(g) require coded entry or similar authentication to activate play;

(h) prohibit spinning reels or other representations or audiovisual features that mimic a video slot machine;

(i) prohibit any electronic user interface that mimics a video slot machine, such as allowing manual and discrete player action to reveal symbols;

(j) prohibit free plays, bonus games, multipliers, jackpots, discounts, promotions, special offers, or other deals to initiate or prolong player engagement;

(k) prohibit any feature that simulates skill or allows player input to influence the outcome of a predetermined result;

(l) prohibit the display of near-miss outcomes that may mislead a player into believing a win was narrowly missed; and

(m) limit the speed of play to prevent rapid successive wagering as required by regulations promulgated by the commission.

4. The following information shall be displayed by each electronic bell jar vending machine:

(a) the total number of tickets in each deal;

(b) the price of each ticket;

(c) the number and amount of prizes available or remaining in each deal;

(d) the number and amounts of prizes that have been claimed in each deal;

(e) the number of winners per ticket and its respective winning numbers or symbols;

1 (f) the name of the game;
2 (g) the name or logo of the manufacturer of the tickets and the elec-
3 tronic bell jar vending machine; and
4 (h) the compulsive gambling hotline telephone number for the state of
5 New York.

6 5. If a voucher is produced by an electronic bell jar vending machine
7 for prize redemption, the following information shall appear on such
8 voucher:

9 (a) the aggregate prize amount payable to the player;
10 (b) the value of any unused tickets;
11 (c) the device number or other identification method for the vending
12 machine that produced such voucher;
13 (d) the date and time that such voucher was printed;
14 (e) the sequential number of such voucher;
15 (f) an identification number, barcode or similar form of encryption
16 that may be used to validate the prize amount payable to the player; and
17 (g) the period of time during which unused tickets or prize amounts
18 must be claimed.

19 6. The commission shall promulgate such rules and regulations as may
20 be necessary for the implementation of electronic bell jar vending
21 machine gaming in accordance with the provisions of this section.

22 § 7. Subdivisions 1 and 4 of section 195-n of the general municipal
23 law, as amended by chapter 637 of the laws of 1999, are amended to read
24 as follows:

25 1. Distribution; manufacturers. For business conducted in this state,
26 manufacturers licensed by the [board] commission to sell bell jar tick-
27 ets or electric bell jar vending machines shall sell only such tickets
28 or vending machines to distributors licensed by the [board] commission.
29 Manufacturers of bell jar tickets, seal cards, merchandise boards, and
30 coin boards may submit samples, artists' renderings, or color photoco-
31 pies of proposed bell jar tickets, seal cards, merchandise boards, coin
32 boards, payout cards, and flares for review and approval by the [board]
33 commission. Within thirty days of receipt of such sample or rendering,
34 the [board] commission shall approve or deny such bell jar tickets.
35 Following approval of a rendering of a bell jar ticket, seal card,
36 merchandise board, or coin board by the [board] commission, the manufac-
37 turer shall submit to the [board] commission a sample of the printed
38 bell jar ticket, seal card, merchandise board, coin board, payout card,
39 and flare for such game. Such sample shall be submitted prior to the
40 sale of the game to any licensed distributor for resale in this state.
41 For coin boards and merchandise boards, nothing herein shall require the
42 submittal of actual coins or merchandise as part of the approval proc-
43 ess. Any licensed manufacturer who willfully violates the provisions of
44 this section shall: (a) upon such first offense, have their license
45 suspended for a period of thirty days; (b) upon such second offense,
46 participate in a hearing to be conducted by the [board] commission, and
47 surrender their license for such period as recommended by the [board]
48 commission; and (c) upon such third or subsequent offense, have their
49 license suspended for a period of one year and shall be guilty of a
50 class E felony. Any unlicensed manufacturer who violates the provisions
51 of this section shall be guilty of a class E felony.

52 4. Reports of sales. A manufacturer who sells bell jar tickets for
53 resale in this state shall file with the [board] commission, on a form
54 prescribed by the [board] commission a report of all bell jar tickets
55 sold to distributors in the state. The report shall be filed quarterly
56 on or before the twentieth day of the month succeeding the end of the

quarter in which the sale was made. The ~~[board]~~ commission may require that the report be submitted via magnetic media or electronic data transfer. Such report shall also include information regarding any electronic bell jar vending machines sold or leased to a distributor licensed by the commission.

§ 8. Subdivisions 1, 3, 4, and 5 of section 195-o of the general municipal law, subdivision 1 as amended by chapter 637 of the laws of 1999, subdivisions 3 and 4 as added by chapter 309 of the laws of 1996 and subdivision 5 as amended by section 16 of part MM of chapter 59 of the laws of 2017, are amended to read as follows:

1. Distribution; distributors. Any distributor licensed in accordance with section one hundred eighty-nine-a of this article to distribute bell jar tickets or electronic bell jar vending machines shall purchase ~~[bell-jar]~~ such tickets and vending machines only from licensed manufacturers and may manufacture coin boards and merchandise boards only as authorized in subdivision one-a of this section. Licensed distributors of bell jar tickets and electronic bell jar vending machines shall sell such tickets and vending machines only to not-for-profit, charitable or religious organizations registered by the ~~[board]~~ commission. Any licensed distributor who willfully violates the provisions of this section shall: (a) upon such first offense, have their license suspended for a period of thirty days; (b) upon such second offense, participate in a hearing to be conducted by the ~~[board]~~ commission, and surrender their license for such period as recommended by the ~~[board]~~ commission; and (c) upon such third or subsequent offense, have their license suspended for a period of one year and shall be guilty of a class E felony. Any unlicensed distributor who violates this section shall be guilty of a class E felony.

3. Sales records. A distributor shall maintain a record of all bell jar tickets that it sells and all electronic bell jar vending machines that it sells or leases. The record shall include, but need not be limited to:

(a) the identity of the manufacturer from whom the distributor purchased the product;

(b) the serial number of the product;

(c) the name, address, and license or exempt permit number of the organization or person to which the sale was made;

(d) the date of the sale;

(e) the name of the person who ordered the product;

(f) the name of the person who received the product;

(g) the type of product;

(h) the serial number of the product;

(i) the account number identifying the sale from the manufacturer to distributor and the account number identifying the sale from the distributor to the licensed organization; and

(j) the name, form number, or other identifying information for each game.

4. Invoices; agreements. (a) A distributor shall supply with each sale of a bell jar product an itemized invoice showing the distributor's name and address, the purchaser's name, address, and license number, the date of the sale, the account number identifying the sale from the manufacturer to distributor and the account number identifying the sale from the distributor to the licensed organization, and the description of the deals, including the form number, the serial number and the ideal gross from every deal of bell jar or similar game.

(b) Prior to the sale, lease, or distribution of an electronic bell jar vending machine to an authorized organization, the distributor or manufacturer shall provide the contract or agreement for such sale, lease or distribution to the commission for approval and any modification to such contract or agreement thereafter. Such contract or agreement shall show, at minimum:

(i) the name and address of the authorized organization;

(ii) the date of sale, lease or distribution;

(iii) the serial number of each such machine;

(iv) the material terms and conditions of such contract or agreement; and

(v) any additional information as the commission may require.

(c) The commission may promulgate rules and regulations relating to the terms of any contract or agreement for the sale, lease, or distribution of an electronic bell jar vending machine to an authorized organization. The commission shall approve or deny such contract or agreement within thirty days of receipt and any material modification to such contract or agreement thereafter. If the commission denies approval for such contract, agreement or modification, it shall provide the reasons for such determination.

5. Reports. A distributor shall report quarterly to the gaming commission, on a form prescribed by the gaming commission, its sales of each type of bell jar deal or tickets and electronic bell jar vending machines. This report shall be filed quarterly on or before the twentieth day of the month succeeding the end of the quarter in which the sale was made. The gaming commission may require that a distributor submit the quarterly report and invoices required by this section via electronic media or electronic data transfer.

§ 9. Section 195-q of the general municipal law is amended by adding a new subdivision 3 to read as follows:

3. (a) An authorized organization may only operate electronic bell jar vending machines on premises that it owns or leases.

(b) An authorized organization may operate no more than one electronic bell jar vending machine. In no situation may more than one electronic bell jar machine be operated at any leased premises, no matter how many authorized organizations are co-lessees or co-owners.

(c) No authorized organization shall operate an electronic bell jar vending machine unless it is a games of chance licensee authorized by the commission to operate an electronic bell jar vending machine. The commission may promulgate rules and regulations as may be necessary for the approval of an authorized organization to operate an electronic bell jar vending machine. The commission may revoke, suspend, or condition such approval. The commission shall approve or deny such request for such approval within thirty days. If the commission denies such request, it shall provide the reasons for such determination.

(d) Each bell jar vending machine shall generate sales reports and such other information that the commission may direct by regulation. The commission shall have access to the server of each electronic bell jar vending machine for the purpose of monitoring and auditing at no cost to the state.

(e) Any unclaimed funds or tickets left in any electronic bell jar vending machine shall be retained by the authorized organization and reported as net proceeds.

(f) No authorized organization may operate any electronic bell jar vending machine within the following area: (i) to the east, state route fourteen from Sodus Point to the Pennsylvania border with New York; (ii)

1 to the north, the border between New York and Canada; (iii) to the
2 south, the Pennsylvania border with New York; and (iv) to the west, the
3 border between New York and Canada and the border between Pennsylvania
4 and New York.

5 § 10. This act shall take effect immediately.